

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, MAY 12, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, May 12, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, May 11, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at 8:30 a.m. in **Department 42**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0087555 Philadelphia Indemnity Ins. Co. v. Lewis, Deann

Motion to Substitute Party

Cross-complainants Jennifer Flippen-Black and Justin Black's unopposed motion is granted. If a cause of action survives death of a party, on motion "the court shall allow" substitution by the decedent's personal representative or, if none, by the decedent's successor in interest. (Code Civ. Proc., §§ 377.31 [decedent's cause of action]; 377.41 [cause of action against a decedent].) "Personal representative" is defined to include the executor of an estate. (Prob. Code, § 58.)

Here, cross-complainants present evidence that cross-defendant Jimmy Joseph Gloria is deceased and that Angie Brown has been appointed as the executor of his estate. Cross-complainants' breach of contract and related claims survive the death of cross-defendant. Accordingly, Angie Brown is substituted into the case as the personal representative for the estate of Jimmy Joseph Gloria.